



Terms & Conditions – Gig Workers / Delivery Partners

Effective Date: **1 February 2026**

These Terms and Conditions ("Terms") are entered into by and between the Delivery Partner ("You", "Your") and Gintaa ("Company", "We", "Us"), governing Your use of the Gintaa Delivery Partner App and Platform ("Platform") to provide delivery services to customers ("Delivery Services").

By registering and using the Platform, You agree to abide by these Terms. Please read them carefully.

PURPOSE OF ENGAGEMENT & TERMS & CONDITIONS:

Gintaa a prominent food delivery aggregator arranges for delivery of Food (including beverages) from its partner restaurants, hotel chains, food joints and cloud kitchens.

Gintaa, engages individuals as delivery partners from time to time for this purpose.

The purpose of this engagement is to facilitate the efficient and timely delivery of food orders from partner restaurants of Gintaa to customers. Delivery partners operate as independent contractors, using Gintaa's e-commerce platform to accept and fulfil delivery assignments.

These Terms & Conditions are intended to ensure a transparent mechanism for such engagement.

NATURE OF ENGAGEMENT

- You understand and agree that you are an independent contractor and not an employee, agent, or representative of Gintaa.
- This engagement does not create an employer-employee relationship or entitlement to benefits applicable to employees under labour laws, except to the extent specifically mandated for gig or platform workers under applicable law. Accordingly, Gintaa shall comply with statutory obligations, if any, applicable to aggregators in respect of gig or platform workers, as and when notified by the appropriate government. You shall be free to determine your own working hours and are free to accept or reject delivery tasks made available on the Platform.
- For the purposes of applicable law, including the Code on Social Security, 2020 and rules framed thereunder, the Delivery Partner may qualify as a "gig worker" and/or "platform worker", as defined under such legislation.

These Terms and Conditions constitute a valid and binding engagement contract and appointment letter for the purposes of the Code on Social Security, 2020 and applicable rules relating to gig and platform



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- Be at least 18 years old.
- Possess valid government-issued identification (Aadhaar card and PAN card).
- Provide accurate personal details: full name, address, contact number.
- Provide valid bank account details for remittance of earnings.
- Consent to background verification and authentication of documents by Gintaa or authorized third parties.
- Have a valid two-wheeler driving license, vehicle registration documents, valid PUC Certificate & valid motor insurance for delivery operations.
- Consent to Aadhaar-based identification and generation or linkage of a Universal Account Number (UAN) for social security purposes, where required under applicable law.
- Acknowledge that Aadhaar and UAN details shall be collected, processed, and shared only with authorized government systems strictly in accordance with applicable data protection and Aadhaar laws.

Gintaa reserves the right to accept or reject any application at its sole discretion.

USE OF THE PLATFORM

- The Delivery Partner shall access the Platform through a registered mobile device using secure login credentials. These credentials are personal and must not be shared.
- You agree not to engage in any activity that interferes with or disrupts the Platform or its services.

PROVISION OF DELIVERY SERVICES

- You are expected to accept orders promptly and deliver them in a timely, safe, and professional manner without compromising your own safety, the safety of others and strictly in compliance with local laws including Traffic laws.
- Delivery Partners must follow hygiene and handling standards as prescribed by Gintaa.
- Any item marked as non-deliverable or lost due to the Delivery Partner's negligence may attract penalties and reimbursement obligations.

DELIVERY OBLIGATIONS

The Delivery Partner is not subject to any minimum working hours, mandatory login requirements, exclusivity obligations, or compulsory acceptance of delivery assignments. The Delivery Partner retains complete discretion to determine when to access the Platform and whether to accept or reject any delivery request.



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- Maintain professionalism and courtesy throughout the transaction; and
- Ensure complete delivery of the order. Any non-delivery or part delivery attributable to the Delivery Partner's fault or negligence may attract penalties and/or other action in accordance with Gintaa's policies, including suspension or termination of access to the Platform.

You shall not delegate delivery assignments to any third party. If found in breach, your account may be suspended.

You must report any issue (e.g., customer unavailability, traffic incident) promptly through the in-app support or helpline.

ON-DUTY STATUS, USE OF GINTAA BRANDING, AND LIMITATION OF RESPONSIBILITY

The Delivery Partner acknowledges that their engagement with Gintaa is limited strictly to the period during which a delivery assignment is voluntarily accepted through the Platform and remains active until such delivery assignment is duly completed or closed on the Platform ("On-Duty Period").

Any activity undertaken by the Delivery Partner outside the On-Duty Period, including but not limited to personal travel, commuting, waiting time, return journeys, or any other personal activity after completion of a delivery assignment, shall be deemed to be outside the scope of engagement with Gintaa ("Off-Duty Period").

The use or wearing of Gintaa-branded apparel, accessories, or delivery equipment (including bags, caps, or uniforms) during any Off-Duty Period shall not be construed as evidence of active engagement, control, employment, agency, or authorization by Gintaa, nor shall it create any liability or responsibility on the part of Gintaa for incidents, accidents, or losses occurring during such time.

Gintaa shall not be liable for any injury, accident, loss, or damage suffered by the Delivery Partner or any third party during an Off-Duty Period, except to the extent expressly required under applicable law or covered under any specific insurance policy facilitated by Gintaa.

Delivery Partners are advised to remove or refrain from using Gintaa-branded equipment when not actively engaged in a delivery assignment and to ensure that such equipment is used solely for the purpose of fulfilling accepted delivery tasks.

For the avoidance of doubt, the On-Duty Period shall be limited strictly to the duration of an active delivery assignment as reflected on the Platform and shall not include any idle time, travel to or from personal locations, or periods when the Delivery Partner is not actively assigned a delivery through the



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- Payouts will be credited to the Delivery Partner's registered bank account as per the schedule communicated on the Platform.
- Delivery Partner earnings are calculated on a per-task and performance-linked basis and are not time-based wages. Any statutory minimum earnings or floor rates applicable to gig or platform workers shall be complied with in the manner prescribed under applicable law, without altering the independent contractor nature of this engagement.

CANCELLATION AND PENALTIES

DELIVERY PARTNERS SHALL BE PENALIZED IF

- Orders are cancelled or remain undelivered due to their fault or negligence.
- There is an unreasonable delay in picking up or delivering orders.
- There is misbehaviour with customers, merchants, or staff.
- Non-delivery or part delivery.

No penalty shall apply if the order cancellation or delivery failure following customer unavailability and if a genuine delivery attempt was made.

CODE OF CONDUCT

You agree to

- Behave respectfully and professionally with customers, merchants, and fellow partners.
- Not engage in any theft, damage, harassment, or abuse.
- Maintain proper grooming, hygiene, and wear appropriate attire while on duty.
- Gintaa shall implement reasonable safety measures and protocols, including those relating to night-time delivery and participation of women delivery partners, as may be required under applicable law or government advisories. Delivery Partners agree to comply with such safety protocols as notified from time to time.

DIGNITY AND NON-DISCRIMINATION

Gintaa is committed to providing a platform free from discrimination on grounds of religion, caste, gender, disability, or any other protected category under applicable law.

Delivery Partners shall be treated with dignity and fairness, subject to performance and compliance with



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Gintaa Partner mobile application.

The OTP shall be generated only after the delivery partner has reviewed and accepted the applicable Terms and Conditions as displayed within the mobile application. The OTP-based authentication is a one-time requirement during onboarding and serves as confirmation of the delivery partner's agreement to the invoicing mechanism.

Submission of the OTP shall be deemed as the delivery partner's explicit confirmation of the invoice and acceptance of the stated terms. Invoices shall be systematically generated at the end of each calendar month.

Upon successful digital confirmation, a copy of the finalized invoice shall be generated and made available to the delivery partner's registered ID within the app. This practice is implemented to promote transparency, support recordkeeping, and provide the delivery partners with accessible documentation for their personal and financial records.

Invoices generated under this mechanism are for commercial settlement purposes only and shall not be construed as proof of employment, wages, or salary under any labour law.

UNDERTAKING BY THE DELIVERY PARTNER:

The Delivery Partner

- shall not consume or be under influence of alcohol, drugs, or any intoxicating substances while on duty or prior to undertaking any delivery.
- shall not drive under the influence of any substance that may impair his judgment or driving ability
- shall strictly adhere to all traffic laws, road safety norms, and applicable regulations at all times.
- shall operate my vehicle responsibly and ensure it is maintained in good working condition.
- shall behave respectfully and professionally with customers, merchants, fellow delivery partners, and company staff.
- understand that any violation of this undertaking may result in immediate suspension or termination of my account, and may attract legal consequences as per applicable law.
- Shall take adequate measures to keep all the goods provided by Gintaa like, carrying bag, cap, tee shirt in good conditions and shall return them whenever he opts out from this association.
- Shall ensure proper personal grooming and hygiene including but not limited to wearing clean clothes and footwear, keeping good haircut and trimmed beard (if applicable) to ensure that the brand name of Gintaa is not impacted due to any lack of proper grooming, cleanliness and hygiene.



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- Delegate or assign delivery tasks to a third party. If found, Gintaa reserves the right to suspend or terminate your account.
- Tamper with or misuse the Platform for fraudulent purposes.
- Share customer or merchant data without consent.

DEVICE, FUEL, AND MAINTENANCE

Delivery Partners are responsible for their own smartphones, mobile data, fuel, and vehicle maintenance. Gintaa does not provide reimbursements for such expenses unless explicitly stated.

INSURANCE AND SAFETY

- Delivery Partners shall maintain valid motor insurance as required by law.
- You are expected to comply with traffic regulations and safety measures while performing delivery tasks.
- Gintaa may, at its discretion or as required under applicable law, facilitate access to group insurance or accident cover for Delivery Partners, subject to the terms of the relevant policy or statutory scheme.

ACCOUNT SUSPENSION OR TERMINATION

Gintaa may suspend or terminate your account without prior notice in the following cases

- Violation of these Terms.
- Fraudulent activity or misconduct.
- Poor customer ratings or repeated delivery failures.
- Breach of trust, including misuse of the Platform or confidential data.

Gintaa shall, to the extent practicable, provide the Delivery Partner an opportunity to respond or be heard through in-app or electronic communication prior to suspension or termination of access to the Platform.

Notwithstanding such opportunity, the final decision in all cases, including the nature and duration of any action taken, shall rest solely with Gintaa.

Delivery Partners may choose to voluntarily terminate their account by submitting a formal request through the Platform support channels.



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Delivery Partners agree to keep confidential all information related to Gintaa, its customers, and partner merchants. Any breach of confidentiality may result in legal action and account deactivation.

DATA PRIVACY

Your personal data will be collected, used, and processed in accordance with Gintaa's Privacy Policy. You consent to such data usage by signing up on the Platform.

SOCIAL SECURITY AND WELFARE MEASURES

In accordance with the Code on Social Security, 2020 and rules notified thereunder, Gintaa shall make contributions, where applicable, to the prescribed Gig and Platform Worker Social Security Fund at such rates and in such manner as may be notified by the appropriate government. Delivery Partners acknowledge that such contributions are statutory in nature, shall not constitute wages or employment benefits, and shall not create an employer-employee relationship.

LIMITATION OF LIABILITY

Gintaa is not liable for any personal injury, accidents, or losses suffered during delivery, unless otherwise covered under a specific insurance policy provided by Gintaa.

NO WAIVER

No failure or delay by Gintaa in exercising any right, power, or remedy under these Terms or any related agreement shall be deemed a waiver of such right, power, or remedy. Any waiver by Gintaa must be expressly stated in writing and signed by an authorized representative. A waiver of any specific breach or default shall not be construed as a waiver of any subsequent or continuing breach or default.

>GOVERNING LAW AND JURISDICTION

These Terms and Conditions shall be governed and construed in accordance with the laws of India. Any dispute, claim, or controversy arising out of or in connection with this Agreement, including any questions regarding its existence, validity, or termination, shall be subject to the exclusive jurisdiction of the competent courts located in Kolkata, West Bengal, India.

In the event of any inconsistency between these Terms and applicable law, including labour and social security legislation, the provisions of such law shall prevail to the extent of inconsistency.

UPDATE/MODIFICATIONS



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ACKNOWLEDGEMENT

BY REGISTERING AS A DELIVERY PARTNER AND USING THE GINTAA PLATFORM, YOU CONFIRM THAT

- You have read, understood, and agreed to these Terms and Conditions;
- You understand your role as an independent contractor;
- You accept that Gintaa may communicate with you via phone, SMS, email, or app notifications for operational and compliance purposes.

CONTACT US

For any questions, concerns, or requests regarding this Privacy Policy or your personal data, please contact:

- **Address:** Gintaa Tower, Mohisgote, New Town, Opposite DLF 1, Gate No.5, Kolkata, West Bengal-700102, India
- **Phone:** 080-69188100
- **Email ID:** delivery.partner@gintaa.com



Lowest Menu Price
Online



Top Cuisines Near
You



Fast Delivery



Help & Support

Download our app



Tutorial



Connect with Us

Languages



English



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080-69188101

food.grievance@gintaa.com

Our Consultants

Tax Consultant – Transaction Square

Legal Consultant – JSG legal

Financial Consultant – AHK & Company

Grievance officer: Subrata Chaudhuri, 08069188101, food.grievance@gintaa.com

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Order from Gintaa and Save Big

A world of flavors just for you! Upgrade your online food ordering experience with Gintaa...

It's not just that Gintaa has the best cuisines from across the globe, or more than 10,000+ top-rated restaurants at your location. But the **Lowest Food Prices Online**

Brace yourself for the unbeatable prices and a whopping discount of up to **75%** discount on your online food ordering.

No more comparing prices to get a lower food bill. You can now order food from the comfort of your own home at the lowest possible price.

30+ Cuisines and 10,000+ Restaurants

Were you craving Tiramisu after lunch? Why not order it from Gintaa? If you're looking for a place with a world of cuisines, then Gintaa is just the place for you. Here, you get 10,000+ restaurants, that too with a wide variety of cuisines.

Delights from your Local Favorites

Love that Chicken tikka masala roll from that store? But you really don't want to go all the way there. Guess what? Gintaa allows you to order from your favorite local restaurants. You can get your food delivered without having to worry about the product's quality or quantity.

Surprising Discounts on All Orders

Most food apps provide a discount on a couple of restaurants but that is not the case with Gintaa. You would get 75% OFF up to ₹60 on all orders! That is valid after every two hours from the time of ordering.

Lowest Food Prices Online



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Lowest Food Prices Online! Mark the word, that's Gintaa's guarantee! If you find a lower price on another app, we will **double the price difference**. That's the challenge! Show us with a definitive proof, and you will get the refund in no time.

Order online.

Gintaa is more than just a food ordering app; it's an app where you can not only place an order and have it delivered to your home but also pick it up as a takeaway. Yes, you may place an order using the app and then pick it up at the restaurant on your way.

Lowest Delivery Charges

The price of the food bill just gets too high because of the high delivery charges. But Gintaa has the lowest delivery charges. It is the restaurants that decide the delivery charges to be charged based on the order value.

Minimal Commission for Restaurants

Unlike other food ordering apps, Gintaa follows minimal commission module designed to retain restaurants profits. By keeping the commission low, Gintaa boost restaurants profit, reduces operational cost and elevates growth

Fastest Credit Payout

Now no more running a restaurant business on credit. Get paid for your services provided through Gintaa within 72 hours, and that stands as a credit payout guarantee. Gintaa automated payout system will help restaurants get their payments cleared within 2-3 days

Refer & Earn

Make your wallet heavy with Gintaa Coins. Refer Gintaa Food App to your friends, make them sign up, place an order and woohoo Gintaa coins get credited to you.

Experience food ordering like never before! Order from Gintaa and enjoy the world of discounts...



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